

DAVID O. LEAVITT #5990
Utah County Attorney
PETER REICHMAN #15241
Deputy Utah County Attorney
100 East Center, Suite 2100
Provo, Utah 84606
Email: dcourt@utahcounty.gov
Phone: (801) 851-8026

**IN THE FOURTH JUDICIAL DISTRICT COURT
UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

vs.

JOSEPH E FERRERI,

Defendant.

**OPPOSITION TO MOTION FOR STATE
OF UTAH TO HAVE RECORDINGS
PROVIDED THROUGH DISCOVERY
TRANSCRIBED**

Case No. 211400304

Judge Thomas L. Low

State of Utah, by and through Deputy Utah County Attorney, Peter Reichman, files this Opposition to Defendant's Motion for State of Utah to Have Recordings Provided Through Discovery Transcribed.

Defendant has requested that this Court order the State of Utah to provide translated transcriptions of recorded interviews, some of which were conducted in Chinese. Defendant concedes that the State of Utah has provided written summaries of the interviews and argues that the State of Utah should still be required to both translate and transcribe said interviews.

Defendant does not provide any authority suggesting that the State of Utah is required to translate all discovery into the English language. The State has also looked for authority and cannot find any such authority that would require the State of Utah to ensure that all produced

discovery is produced in the English language. Moreover, providing a transcription of video recorded interviews is not a requirement under the discovery rules of Rule 16 of the Utah Rules of Criminal Procedure. Recorded interviews are regularly part of discovery in criminal cases and Rule 16 does not compel the State of Utah to transcribe every interview produced in discovery. S

The State of Utah opposes Defendant's Motion and respectfully requests that the Court deny the Motion.

Dated this 26th day of October 2021.

Utah County Attorney's Office

/s/ Peter Reichman
PETER REICHMAN
Deputy Utah County Attorney

CERTIFICATE OF E-FILING

I certify that I e-filed a copy of the foregoing Opposition to Motion for State of Utah to Have Recordings Provided Through Discovery Transcribed and through filing of such, provided notice to:

Lindsay Jarvis
Attorney for Defendant Joseph Ferreri

Peter Reichman